

25STCV18899 25STCV18899

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Case Number: 25STCV18899 Hearing Date: August 6, 2026 Dept: 617

Dept.

617

Date:

8-6-26

Case

#: 25STCV18899

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendant, FCA US, LLC

RESPONDING

PARTY: Plaintiff, Juanita Cruz

RELIEF

REQUESTED

Demurrer

to Complaint

Motion

to Strike

SUMMARY OF ACTION

This

is a lemon law action. Plaintiff Juanita Cruz sued Defendant FCA US, LLC alleging Defendant failed to promptly replace her 2018 Jeep Wrangler or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff also alleges Defendant fraudulently induced the sale of the car by concealing the existence of an engine defect. Plaintiff additionally brings a negligent repair claim against Defendant Dependable Chrysler Dodge Jeep Ram.

RULING:

Request

for Judicial Notice: Granted in part.

The

Court takes judicial notice of the California Department of Consumer Affairs List of Manufacturers That Opted In To New Lemon Law Procedures. (Evid. Code, § 452, subd. (c).) The Court does not take judicial notice of the legislative history because it is immaterial to disposition of the demurrer.

Demurrer: Sustained in
part.

Defendant

FCA US, LLC demurs to each cause of action in Plaintiff's complaint. As an initial matter, Defendant does not have standing to challenge the negligent repair claim as that claim is only asserted against Dependable Chrysler Dodge Jeep Ram. (See *Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410 ["Allegations of misconduct directed against one defendant, however, do not state a cause of action against another defendant against whom the allegations of misconduct are not directed"].) Thus, only the warranty and fraudulent inducement claims are at issue. Defendant argues that the warranty claims are barred by Code of Civil Procedure section 871.21's statute of repose and Plaintiff fails to sufficiently state her fraud claim. Plaintiff opposes the demurrer, denying her warranty claims are barred and maintaining the sufficiency of the allegations in support of her fraud cause of action.

Defendant's demurrer is sustained in part with leave to amend as to the express warranty claims. The demurrer is overruled as to the implied warranty and fraudulent inducement causes of action.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

First

through Fourth Causes of Action: Warranty Claims

Defendant

argues that Plaintiff's warranty claims are barred under section 871.21's 6-year statute of repose. Plaintiff responds that section 871.21 is inapplicable, its application would violate due process, and equitable tolling applies.

Section

871.21 requires that actions covered by section 871.20 be brought within one year "after the expiration of the applicable express warranty," but no more than six years "after the date of original delivery of the motor vehicle." (Code Civ. Proc., § 871.21, subds. (a)-(b).) Section 871.20 applies to an action, "brought against a manufacturer who has elected under Section

871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty.” (Id. § 871.20, subd. (a).) Under section 871.30, manufacturers have a 30-day window from that provision’s April 2, 2025 effective date “to elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.” (Id. § 871.30, subd. (a).) Absent a manufacturer’s election, section 871.21 “shall not apply to an action described in subdivision (a) of Section 871.20, including actions already filed between January 1, 2025 and the effective date of the act adding this section, with respect to all of its vehicles sold new in the year 2025 and in all prior years.” (Id. § 871.30, subd. (c).)

Section

871.21 applies to all of Plaintiff’s express warranty claims, but not to her implied warranty cause of action. When Plaintiff filed her case on June 30, 2025, section 871.21 applied. The only impact of Defendant’s later April 25, 2025 opt-in was to reaffirm section 871.21’s applicability to lemon law cases filed against it on or after January 1, 2025 with respect to all cars it sold in 2025 and years prior. (Cal. Dep’t of Consumer Affs., Manufacturer Opt-in List, https://www.dca.ca.gov/acp/accepted_manufacturers.shtml.) Contrary to Plaintiff’s claim, the subsequent amendment modifying the effective date of certain procedures is irrelevant. That amendment only delayed the effective date of consumers’ pre-filing obligations to July 1, 2025 and thus has no bearing here. (Code Civ. Proc., § 871.24, subd. (k).) The scope of section 871.21 also extends to Plaintiff’s insufficient literature and parts claim under Civil Code section 1793.2, subdivision (a)(3), because she seeks a civil penalty under Civil Code section 1794, subdivision (c), for that claim. [Compl. ¶ 53.] However, section 871.21 does not apply to Plaintiff’s implied warranty claim because she does not seek civil penalties for that claim. [See id. ¶¶ 54-58.] Thus, section 871.21 only governs Plaintiff’s claims premised on Defendant’s express warranty.

Section 871.21’s application to Plaintiff’s express warranty claims bars those claims under its statute of repose. The parties do not

dispute that the statute of repose required Plaintiff to bring her claims by February 16, 2024—six years after Plaintiff purchased her car and it (presumably) was delivered to her. (Code Civ. Proc., § 871.21, subd. (b)). Plaintiff argues, however, that retroactive application of that provision violates due process because it cuts off her claims and that the time limits are tolled via equitable tolling. Because statutes of repose are generally not subject to equitable tolling (*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 178), the only question is whether application of the statute violates due process.

Statutes of repose implicate retroactive concerns because they “extinguish a right of action after the period has elapsed.” (*PGA West Residential Assn., Inc.*, supra, 14 Cal.App.5th at p. 177.) In this way, they are harsher than statute of limitations because they “cut[] off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded.” (*Ibid.*) Thus, the constitutionality of applying section 871.21’s statute of repose here hinges on whether Plaintiff was left with a reasonable time to file suit. (*Aronson v. Superior Court* (1987) 191 Cal.App.3d 294, 297.)

Plaintiff, having the burden to “plead facts showing [her] substantive right has not been extinguished by a statute of repose” (*PGA West Residential Assn., Inc.*, supra, 14 Cal.App.5th at p. 178), fails to demonstrate the inapplicability of the statute of repose to her claims. The complaint contains no allegations regarding when her causes of action accrued. Plaintiff merely alleges that she discovered Defendant’s alleged wrongful conduct “shortly before the filing of the complaint, as the Vehicle continued to exhibit symptoms of defects following FCA’s unsuccessful attempts to repair them” and that “FCA failed to provide restitution pursuant to the Song-Beverly Consumer Warranty Act.” [Compl. ¶ 38.] It is impossible to determine whether Plaintiff had an unexpired right of action at the time of section 871.21’s enactment and whether the time left for her to file her claim was reasonable. Defendant’s demurrer to the express warranty claims is therefore sustained. Nonetheless, because there is a reasonable possibility that Plaintiff can cure this defect, she is granted leave to amend. The demurrer to the implied warranty claim is overruled.

Sixth

Cause of Action: Fraudulent Inducement

Defendant

argues Plaintiff's fraudulent inducement by concealment claim fails because she does not plead with particularity when the omitted facts should or could have been revealed, actual and justifiable reliance on the omission, the details of Defendant's specific misrepresentations, and the basis for her belief that Defendant had knowledge of the alleged defect. Defendant further contends that Plaintiff has not sufficiently alleged that it owed her a duty to disclose the purported engine defect because she does not plead a "direct transaction" between the parties.

"The

required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact." (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40.) As with all other fraud claims, fraudulent concealment must be pled with specificity "even though the focus of inquiry shifts to the unique elements of the claim." (Id. at p. 43.) Mere conclusory allegations are insufficient. (Id. at p. 44.)

A

duty to disclose may arise if "the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge)." (Rattagan, supra, 17 Cal.5th at p. 40.) This circumstance presupposes "a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.'" (Id. at pp. 40-41, quoting LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337.) "If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5)

justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (Id. at pp. 43-44.)

Defendant's

particularity arguments are unavailing. Plaintiff pleads actual and justifiable reliance because she alleges that had she "known that the Vehicle and its Engine were defective at the time of sale, Plaintiff would not have purchased the Vehicle." [Compl. ¶ 69.] The alleged omission (i.e., the existence of the engine defect) thus should have been revealed at that time. That Plaintiff does not allege who made representations on Defendant's behalf or the details of those representations is immaterial as Plaintiff's claim is not based on anything Defendant said, but what it did not say. Finally, Plaintiff pleads that Defendant had knowledge of the defect "through sources not available to consumers such as Plaintiff, including but not limited to pre-production testing data, early consumer complaints about the Engine Defect made directly to FCA and its network of dealers, aggregate warranty data compiled from FCA's network of dealers, testing conducted by FCA in response to these complaints, as well as warranty repair and part replacements data received by FCA from FCA's network of dealers, amongst other sources of internal information." [Id. ¶ 67(a).] Defendant's particularity challenges thus do not defeat Plaintiff's fraud claim.

Plaintiff

further pleads a special relationship sufficient to trigger a duty to disclose. Plaintiff alleges that on or about February 16, 2018, she and Defendant entered into a "warranty contract" regarding her car. [Compl. ¶ 7.] Such a contractual relationship may support a duty to disclose on behalf of Defendant. (Rattagan, supra, 17 Cal.5th at pp. 40-41.) Defendant's provision of a warranty to Plaintiff is not a transaction between Defendant and "the public at large" as Defendant provided the warranty directly to Plaintiff. (Id. at p. 41.) Plaintiff has thus alleged a special relationship between her and Defendant. Defendant's demurrer to the fraudulent inducement claim is therefore overruled.

Motion

to Strike:

Denied.

Defendant

moves to strike Plaintiff's prayer for punitive damages in sub-paragraph "e" of her prayer for relief. It argues that Plaintiff's fraud claim fails and her

punitive damages claim falls with it. Plaintiff responds that her punitive damages claim stands because she has sufficiently pled a fraudulent inducement cause of action. The motion to strike is denied because Plaintiff pleads a fraud claim that forms the basis of her punitive damages request.

To

support punitive damages, the plaintiff's complaint "must allege ultimate facts of the defendant's oppression, fraud, or malice." (Cyrus v. Haveson (1976) 65 Cal.App.3d 306, 316-17; Civ. Code, § 3294, subd. (a).) "Fraud" is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).)

As

explained in the Court's ruling on Defendant's demurrer, Defendant's challenge to Plaintiff's fraudulent inducement by concealment claim fails. The fraud cause of action is sufficient to support Plaintiff's punitive damages claim. (Stevens v. Superior Court (1986) 180 Cal.App.3d 605, 610.) The limitation on corporate punitive damages liability imposed by Civil Code section 3294, subdivision (b), poses no obstacle here. Under that provision, an employer is not liable for punitive damages based on the actions of an employee "unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (Ibid.) Here, Plaintiff alleges Defendant knew the 3.6L engine in its 2018 Jeep Wrangler models were defective, but intentionally did not disclose this fact to consumers, such as Plaintiff. [Compl. ¶¶ 16, 20, 65-72.] Such an alleged scheme presumably must be implemented or ratified by the corporation's higher-ups. Thus, Plaintiff has sufficiently alleged facts to support her punitive damages claim against Defendant and the motion to strike is denied.

Plaintiff

is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged express warranty claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018,

1023.) If Plaintiff declines or fails to file an amended complaint, Defendant shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendant
to give notice.